HEADNOTE

"1. The patent in dispute constitutes the subject-matter of the Court's examination and may therefore be consulted ex officio where a party has identified it but has not filed a copy. This does not apply to patents or patent applications (or file history) relied upon as evidence in support of invalidity objections: notwithstanding their public availability, such documents must be duly introduced into the proceedings by the party relying on them, in accordance with Article 54 UPCA and Rules 170.1(a) and 172 RoP. Such materials constitute procedural documents in the strict sense: they form the evidentiary basis of the parties' allegations under R. 170.1(a) RoP. Their public availability, and the Court's practical ability to access them, does not relieve the party relying upon them of its burden of pleading and allegation (§ 10-11).
2. For the purpose of assessing novelty of a claim reciting a parameter range, where several technically reasonable methods are available to measure the parameter, and where the patent does not designate one in particular, it is sufficient that at least one of them, applied coherently to the prior-art disclosure, leads directly and unambiguously to a value within the claimed range, to consider that the corresponding feature is anticipated (§ 167).
3. Claim deletion occurs where part of the claim set is simply removed. In that event, the opposing party can only take note of the proprietor's decision to abandon a dependent claim. By contrast, when an amendment under Rule 50 RoP, although it may also take the form of a mere deletion, results in a reformulated claim set, including where dependent claims are concerned, this remains subject to the Court's assessment as to clarity, added matter and validity pursuant to R.50.2 RoP and also to observations by the opposing party under the adversarial principle (§ 184-185)."

COURT
Central Division in Milan

PROCEEDINGS
Action for revocation

PATENT
EP 4 458 303

ENDOLUMINAL LASER ABLATION DEVICE FOR TREATING VEINS

KEYWORDS
Novelty | Prior art | Claim amendment | Procedural documents | Parameter range

Article 54 Burden of proof

SUMMARY
The Central Division in Milan ruled on an action for revocation. The patent at issue relates to an endoluminal laser ablation device for treating veins. According to the headnotes of the decision, a court may examine a patent ex officio if a party identifies it. However, prior-art documents cited as evidence must be formally introduced by the party relying on them. This requirement applies even when such documents are publicly available. Therefore, public accessibility does not excuse a party's obligation to properly plead and allege its evidence. When assessing novelty of a claim with a parameter range, multiple measurement methods may exist. If the patent does not specify which method to use, one coherent approach suffices. Where that method applied to the prior art yields a value within the claimed range, the feature is anticipated. Further, claim deletion by simple removal requires no court assessment of validity or clarity. In contrast, amendments that reformulate the claim set remain subject to court review for compliance with the Rules of Procedure. This distinction means that how a proprietor modifies claims determines whether opposing parties may file observations on those changes.